Confidential

# Consulting Services Agreement

This **AGREEMENT** is made on the 10th May 2019 **between**

**PARTIES**

INFOMEDIA LTD (ACN 63 003 326 243) with its registered office located at 3 Minna Close, Belrose, NSW 2085 **(Client)**

**AND**

ZEDIANT TECHNOLOGIES PRIVATE LIMITED Corporate Identify U72900WB2017 PTC222317 with its registered office located at 37, Pramanik Ghat Road, Block – B Flat D3 Kolkata West Bengal India 700036 **(Consultant)**

**INTRODUCTION**

Consultant has offered to provide consulting services to the Client on the terms set out in this agreement.

1. **Interpretation**

1.1 Except where the context requires otherwise, words importing the masculine shall include the feminine; words importing the singular shall include the plural; words importing natural personage shall be equally applicable to corporate personage; and vice versa.

1.2 References to any statutory provision, authority, rule or code of practice shall be deemed to include the amended versions, replacements or successors of such.

1.3 The following definitions apply in this agreement:

(a) **Affiliate** means any legal entity directly or indirectly (i) controlled by Infomedia Ltd ACN 003 326 243 or (ii) any legal entity directly or indirectly controlled by the Client, and shall include any firm, undertaking, joint venture, association, partnership or other form of business organisation in or through which an entity referred to in (i) or (ii) above directly or indirectly operates or manages on behalf of itself, and in which it directly or indirectly has an ownership, production sharing or other economic interest.

(b) **'Consultant'** the person or entity named as a party to this agreement

(c) **Client** means the party identified as the client party to this agreement

(d) **Client Property** all documents, books, manuals, materials, records, correspondence, papers and information (on whatever media and wherever located) relating to the business or affairs of the Client and/or the Infomedia Group, including their respective business contacts, any equipment, keys, hardware or software provided for use by the Consultant during the agreement, and any data or documents (including copies) produced, maintained or stored on the Consultant or the Client's computer systems or other electronic equipment during the agreement.

(e) **Confidential Information** means information in whatever form (including without limitation, in written, oral, visual or electronic form or on any magnetic or optical disk or memory and wherever located) relating to the business of the Infomedia Group, its products, affairs and finances of Infomedia being confidential to the Infomedia Group, and trade secrets including, without limitation, technical data and know-how relating to the business of the Infomedia or any of its suppliers, consultants, agents, distributors, shareholders, management or business contacts and including (but not limited to) information that Consultant creates, develops, receives or obtains in connection with this agreement, whether or not such information (if in anything other than oral form) is marked confidential.

(f) **Consultancy Fee'** The fee for the Services as set out in the Proposal.

(g) **Infomedia Group** means Infomedia Ltd (ACN 003 326 243) and any of its Affiliates.

(h) **'Intellectual Property** means all patents, rights to inventions, utility models, copyright and related rights, trade marks, service marks, trade, business and domain names, rights in trade dress or get-up, rights in goodwill or to sue for passing off, unfair competition rights, rights in designs, rights in computer software, database right, topography rights, moral rights, rights in Confidential Information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications for and renewals or extensions of such rights, and all similar or equivalent rights or forms of protection in any part of the world as at the date of this agreement or in the future.

(i) **Proposal** means a separate written document which shall contain details of the Services to be provided by Consultant to the Client, the manner in which Consultant shall provide these Services, the deliverables and the basis on which Consultant shall be paid. The Proposal shall for part of this agreement and is incorporated herein.

(j) **Services** means the services described in the Proposal.

## 2. Relationship Between the Parties

2.1 Client engages the Consultant and the Consultant agrees to provide the Services on the terms of this agreement.

2.2 The relationship of Consultant to Client will be that of independent contractor and nothing in this agreement shall render the Consultant as an employee, worker, agent or partner of Client or the Infomedia Group and Consultant shall not hold him or herself out as such.

2.3 Neither party shall assign or transfer any of their rights, liabilities or obligations arising under this agreement without the prior written consent of the other party.

## 3. Term of Agreement

3.1 This agreement will commence on the date it is signed by Client and will continue unless and until terminated:

(a) provided by the terms of this agreement; or

(b) upon satisfactory completion of the Services agreed under the Proposal or any extension or addition to those Services which is agreed in writing; or

(c) Client party giving Zediant not less than 90 days prior written notice.

## 4. The Services Provided

4.1 Consultant represents and warrants that it has the requisite skill, experience and capacity to render the Services, and shall provide consultancy Services to Client as required and as mutually agreed with all due care, skill and ability and use his best endeavors to promote the interests of the Client.

4.2 The nature and detail of the Services which Consultant shall provide to Client shall be as set out in the Proposal.

4.3 Any amendment, extension or addition to the Services must be agreed in writing save that the Client may make any reasonable changes to the Services as maybe required by the Client and will notify the Consultant of such changes.

4.4 Consultant must ensure that it, and each of its appointed personnel and/or contractors comply with all applicable laws, regulations, codes that are applicable to the performance of the Services at all times. Without limiting the generality of this clause, Consultant shall take reasonable steps to

ensure that there is no modern slavery or human trafficking in part of the Consultant's business, nor in any part of the Consultant's supply chain.

4.5 Consultant shall ensure that it and its staff:

(a) Are properly trained and competent to provide the Services;

(b) carry out the Services to the best of their skill and ability for the benefit of the Client;

(c) devote their best efforts and attention to the performance of the Services;

(d) carry out the Services in a timely manner;

(e) comply with all reasonable directions given by the Client from time to time as to the performance, nature and scope of the Services.

4.6 A warranty of 30 days from the date of acceptance shall apply to all deliverables during which time the Client will advise Consultant of any defects, errors or omission in the deliverables (excluding any new scope items) and Consultant shall at its own cost remedy the same in a timely manner.

## 5. Payment for Services

5.1 Subject to clause 5.2, the Client shall pay the Consultancy Fee to Consultant as specified in the Proposal, which shall be inclusive of all of duties and taxes.

5.2 Consultant agrees that Client may withhold 10% of each invoice as a retention security amount up to a maximum amount of AUD$30,000 in any 12 month period. Thereafter and subject to this Agreement, Client shall pay Consultant the full value of any future invoices.

5.3 The security retention amount in clause 5.2 shall be held by the Client as security for the proper performance by the Consultant of its obligations under this Agreement and any Proposal and shall, subject to the terms of this Agreement, be paid to Consultant within 15 days of the expiry of this Agreement.

5.4 Unless specified in the Proposal, the sum payable to Consultant in respect of fees as set out in clause 5.1 is inclusive of any disbursements or expenses which Consultant may incur.

5.5 The Client shall settle all undisputed invoices within 30 days of acceptance.

5.6 Payment in full or in part of the fees claimed under clause 5 shall be without prejudice to any claims or rights of the Client against Consultant in respect of the provision of the Services.

5.7 The Client may, acting reasonably, setoff any debt, loss or damage suffered by the Client as a result of the act or omission of Consultant against any invoice or amount due to Consultant.

## 6. Consultant's Obligations

6.1 The Consultant shall provide the Client with such information, support, co-operation and facilities as may be necessary in order to provide the services and as set out in Annexure 1.

6.2 Specifically, Consultant must ensure that

a) No Infomedia Confidential Information is transmitted or stored on any cloud storage or other media without the written consent of Infomedia

b) Any laptops and storage devices used will be encrypted

c) Suitable antivirus controls will be implemented by Consultant.

6.3 The Consultant is responsible at its cost for internet connections and costs and for other software and computer systems ("Systems") required to provide the Consultant Services and shall ensure such Systems are backed up and protected from viruses and unauthorised use.

## 7. Confidentiality

7.1 Consultant acknowledges that in the course of this agreement it will have access to Confidential Information and agrees to accept the restrictions in this clause 7.

7.2 Consultant shall not (except in the proper course of duties), either during the term of this agreement or at any time after the termination of this agreement, use or disclose to any third party (and shall use his best endeavours to prevent the publication or disclosure of) any Confidential Information. This restriction does not apply to:

(a) any use or disclosure authorised by Client;

(b) a disclosure required by law provided however that the Consultant does not disclose any more information than is reasonably necessary to fulfil the legal requirement. Consultant must use its best endeavours to notify Client before making such disclosure where possible; or

(c) any information which is already in, or comes into, the public domain otherwise than through any unauthorised disclosure by the Consultant.

7.3 At any stage during this agreement, Consultant will promptly on request return all and any Client Property in his possession to the Client and delete or erase all backups and copies.

7.4 Where Consultant seeks to provide Services to Infomedia through a delegate such as an employee or subcontractor, Consultant must first obtain Infomedia's prior written approval and ensure that the said delegate signs a comparable confidentiality undertaking.

## 8. Data Protection and Privacy

8.1 Consultant consents to Infomedia holding and processing data relating to Consultant's personnel for the purposes of performance of the services under this Agreement in accordance with Infomedia's Privacy policy, which can be found at www.infomedia.com.au/privacy

8.2 Consultant consents to Infomedia making such information available to those who provide products or Services to Infomedia and which may require the transfer of such information outside of India.

8.3 In relation to any personal or sensitive information disclosed to the Consultant, it must and must procure all employees, subcontractors and service providers:

(a) not use, disclose, store, transfer or handle the information except in accordance with the Infomedia's Privacy Policy;

(b) take all reasonable steps to ensure that the information is protected from misuse, loss, unauthorised access, modification or disclosure;

(c) take all reasonable steps to destroy or permanently de-identify the information when it is no longer needed for a purpose connected with this Agreement;

(d) only use or disclose the information for a purpose connected with this Agreement

(e) co-operate with any reasonable request or direction of the Client which relates to the protection of the information or the exercise of the functions of any relevant government authority under any privacy law;

(f) ensure that access is limited to people required to access that Information for the purposes of this Agreement; and

(g) ensure that any of employees who access the information comply with the requirements of this clause and of any privacy law.

8.4 The Consultant must promptly inform Infomedia in writing of any complaint that it receives concerning the use, disclosure, storage, transfer or handling of personal information disclosed to the Consultant by Infomedia under this Agreement and comply with any reasonable direction of Infomedia in relation to a complaint concerning the use, disclosure, storage, transfer or handling of personal information disclosed under this Agreement.

9. **Intellectual Property**

9.1 All Intellectual Property in the Services and deliverables shall vest upon creation in and become sole property of Infomedia and the Consultant shall not reuse, redistribute or publish this Intellectual Property without the prior written consent of Infomedia.

9.2 Consultant irrevocably consents to Infomedia altering and changing any deliverables and waives all moral rights it may have in any copyright.

9.3 Consultant must not use any rights to Intellectual Property belonging to any third party as part of the Consultancy Services unless it obtains Infomedia's prior approval.

10. **Termination**

10.1 Without prejudice to clause 3.1, either party may terminate this agreement with immediate effect without notice if the other party:

(a) expressly or impliedly repudiates this Agreement by refusing or threatening to refuse to comply with any of the provisions of this agreement; or

(b) goes into liquidation either compulsory or voluntary (save for the purpose of reconstruction or amalgamation); or

(c) convenes any meeting of creditors or passes a resolution for winding up or suffers a petition for winding up; or

(d) has an administrative receiver or receiver appointed over the whole or part of its assets or suffers the appointment of an administrator; or

(e) is wound up or a court of competent jurisdiction makes an order to that effect; or

(f) commits a material breach of any term of this agreement (and, except in the case of a breach not capable of being remedied), such breach has not been remedied within 30 days of receipt of a written request to remedy the breach; or

(g) is directed to do so by any regulatory authority; or

(h) there is a change in control of such other party.

10.2 Upon termination of this agreement, outstanding payments in respect of Services provided to Client shall become immediately due.

11. **Notices**

11.1 Any notice given to a party under or in connection with this contract shall be in writing and shall be delivered by hand or by pre-paid first-class post or other next working day delivery service at its

registered office or its principal place of business (if a company) or (in the case of Client) his last known address; or

11.2 Any notice shall be deemed to have been received:

(a) if delivered by hand, on signature of a delivery receipt;

(b) if sent by pre-paid first-class post or other next working day delivery service, at 9.00am on the second business day after posting;

11.3 This clause does not apply to the service of any proceedings or other documents in any legal action or, where applicable, any arbitration or other method of dispute resolution.

## 12. Liability and Indemnity

12.1 Client shall not be responsible in any circumstances to the Consultant or any third party for any indirect or consequential or inconsequential or economic damage or loss, including but not limited to loss of revenue, profits or data, howsoever caused, whether as a result of negligence, misrepresentation, breach of contract or otherwise.

12.2 To the maximum extent permitted by law, in respect of all claims, demands or actions under this Agreement, in no event shall Client be liable to Consultant or any third party for an amount greater than fifty thousand dollars ($50,000) in aggregate for all such claims, demands or actions. The foregoing shall apply regardless of the negligence or other fault of either party and regardless of whether such liability arises in contract, negligence, tort, strict liability or under any other theory of liability.

12.3 Nothing in the forgoing shall be read as restricting or limiting in any way Client's liability for death or personal injury to a natural person or to tangible property to the extent such was caused by Client.

12.4 Consultant indemnifies and shall keep indemnified Client and its servants and agents from and against all actions, claims and demands (including the cost of defending or settling any action, claim or demand) which are instituted against Client arising directly or indirectly out of the acts or omissions of Consultant, its agents, employees, Consultant Personnel or any sub-contractor or any other person for whose acts or omissions Consultant is vicariously liable in the course of or in relation to providing the Services.

12.5 Consultant indemnifies and shall keep indemnified Client from and against all liability, whether contingent or actual, for group tax, PAYG tax, income tax, payroll tax or any other tax, duty, fee or charge, or any contributions to be made in respect of any employee of the Consultant, including but not limited to any penalties, which may be incurred by Client in relation to the Consultant's provision of the Services.

## 13. Insurances

13.1 At all times during the Term of this Agreement and for a period of two years thereafter, Consultant shall separately procure and maintain, at its sole cost and expense, at least the following types as generally obtained in India:

(a) Public liability;

(b) Worker's Compensation with limits no less than the minimum amount required by applicable law;

(c) Errors and Omissions/Professional Liability of INR25,000,000 (approx. $500,000 AUD) as per the policy and endorsement approved by Infomedia.

13.2 Consultant shall on or prior to execution of this Agreement provide Client and then upon request and within 7 days copies of the certificates of insurance and policy endorsements for all insurance coverage required by this Section.

## 14. Poaching

Consultant agrees that, without the prior written consent of Client, it shall not during the term of this Agreement and for a period of twelve months after the termination of this Agreement, either directly, or indirectly, and whether as a principal, or agent and alone, or jointly with any person employ or engage, or solicit or contact with a view to employment or engagement by any person, any person who at the relevant time is an employee of the other party, or any associated company and was so employed at any time during the last twelve months of the term of the agreement and with whom the party dealt under the agreement or was made known to that party as a result of the Confidential Information disclosed, whether or not such person would commit a breach of contract by leaving his employment with that party . This clause shall not apply where such employment arose as a result of a public untargeted and unsolicited job advertisement.

## 15. Post Engagement Restraints

15.1 The Consultant acknowledges and agrees that it will become privy to Confidential Information during the Term of this agreement. To reasonably protect the goodwill and the legitimate business interests of the Client and/or the Infomedia Group, during the term of this Agreement and Restraint Period and within the Restraint Area (referred to below), Consultant will not, without prior written consent of the Client, directly or indirectly:

(a) Perform services for a competitor of Infomedia;

(b) Entice or solicit, or assist another person to entice or solicit, an employee, contractor, officer, agent or supplier of the Client or the Infomedia Group, with whom it has had dealings prior to its engagement ending, to cease to provide services to any member of the Infomedia Group;

(c) Canvas, solicit or deal with, or counsel, procure or assist another person to canvass, solicit or deal with any client of the Client of any member of the Infomedia Group with whom you have had dealings during the two year period prior to your engagement ending.

15.2 **Restraint Period** means, from the date of termination of this Agreement:
(a) 12 months;
(b) 6 months.

15.3 **Restraint Area** means:
(a) Worldwide;
(b) the United Kingdom, Continental Europe, the Middle East and Australia
(c) the United Kingdom and Continental Europe;
(d) the United Kingdom and Australia;
(e) the United Kingdom;
(f) Australia.

15.4 Each restraint contained in this Agreement (resulting from any combination of the wording in clauses 1 and 2) constitutes a separate and independent provision, severable from the other restraints. If a court of competent jurisdiction finally decides any such restraint to be unenforceable or whole or in part, the enforceability of the remainder of that restraint and any other restraint will not be affected.

15.5 Consultant must ensure that each of its employees/personnel and/or any validly appointed contractors are bound by reciprocal restraints protecting the Client's interests.

16. **Warranties**

16.1 Both parties and the signatories to this agreement warrant that they are authorised and permitted to enter into this agreement and have obtained all necessary permissions and approvals.

16.2 Both parties warrant and undertake that they are not aware as at the date of this agreement of anything within their reasonable control which might or will adversely affect their ability to fulfil the obligations under this agreement.

17. **Disputes**

17.1 Unless a party has complied with this clause 17, that party may not commence court proceedings relating to any dispute under this agreement, except where that party seeks urgent interlocutory relief.

17.2 A party claiming that a dispute has arisen in connection with this Agreement, must give written notice to the other parties to the dispute specifying the nature of the dispute. On receipt of the notice the parties must seek to resolve the dispute by commercial negotiation within 7 days.

17.3 If the dispute is not resolved within 7 days or within further such period as the parties agree then the dispute must be referred to mediation the parties to the agreement and to the dispute expressly agree to endeavour in good faith to settle the dispute by mediation administered by the Australian Commercial Disputes Centre ("ACDC") in accordance with ACDC mediation guidelines, before having recourse to litigation.

18. **Entire Agreement and Variation**

18.1 This agreement constitutes the entire agreement between the parties. It supersedes and extinguishes any previous agreements, promises, assurances, warranties, representations and understandings between them, whether orally or in writing, relating to the subject matter.

18.2 Where there is a conflict between these terms and those set out in the Proposal the Proposal terms will take precedence.

18.3 Each party acknowledges that, in entering into this agreement, it has not relied on, and shall have no right or remedy in respect of, any statement, representation, assurance or warranty (whether made negligently or innocently) other than as expressly set out in this agreement. Nothing in this clause shall limit or exclude any liability for fraud or for fraudulent misrepresentation.

19. **Governing Law**

19.1 This agreement and any dispute or claim arising out of or in connection with it or its subject matter or formation (including non-contractual disputes or claims) shall be governed by and construed in accordance with the law of New South Wales, Australia.

19.2 The parties irrevocably agree to submit to the exclusive jurisdiction of the courts of over any claim or matter arising under or in connection with this agreement or its subject matter or formation (including non-contractual disputes or claims).

20. **General**

20.1 **Severability**
If any term or provision in this agreement shall in whole or in part be held to any extent to be illegal or unenforceable under any enactment or rule of law that term or provision or part shall to that extent be deemed not to form part of this agreement and the enforceability of the remainder of this agreement shall not be affected.

20.2 **Survival**

The rights and obligations in clauses 7, 8, 9, 11, 12, 13, 14, 15, 17, 19 and 20 and any clause reasonably necessary to interpret their operation shall be deemed to survive this agreement.

20.3 **Force Majeure**
The parties are excused for failure or delay in performing any obligations pursuant to this agreement caused by circumstances outside the reasonable control of that party which could not have been avoided by the exercise of due care including, but not limited to, fortuitous events and acts of God, wars, riots and insurrections, laws, decrees, ordinances and government regulations, strikes and lock outs or floods, fires or explosions.

20.4 **Export control laws.**
Each party shall comply with all export control laws that apply to the transfer of any technology or data in the performance or use under this Agreement.

20.5 **Assignment**
Consultant must not deal with the benefit of this agreement in any way (by assignment, novation, sub-licensing or otherwise) without Client's prior written consent.

In the event that Consultant or any of its shareholders is approached or wishes to issue, transfer or sell its some or all of its shares to another party, it must:

a) first advise Infomedia of such approach and the details of the proposed sale

b) give Infomedia at least 14 days to review such proposed sale and

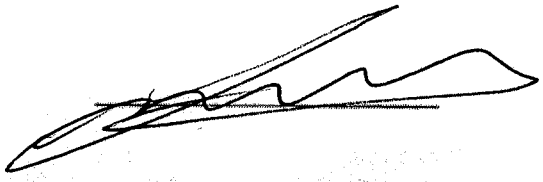
c) within that 14 days prior, give Infomedia a first right of refusal to match any offers made.

20.6 **Variation**
Except as otherwise provided by this agreement, a variation to it is not effective unless it is in writing signed by the parties or their authorised representatives.

**Confidential**

**EXECUTED** as an agreement

Signed for and on behalf of Infomedia Ltd



(Signature of Authorised Officer)

MARK GRODZICKY

(Name of Authorised Officer)

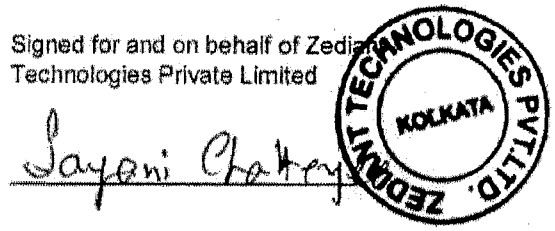
COMPANY SECRETARY

(Position of Authorised Officer)

15/5/2019

Date

Signed for and on behalf of Zediant Technologies Private Limited




Sayani Chatterjee

(Signature of Authorised Officer)

Sayani Chatterjee

(Name of Authorised Officer)

Director

(Position of Authorised Officer)

13.05.2019

Date

**Attachments**

Annexure 1 – Proposal details Consultant obligations, Deliverables and Payments

## Annexure 1 – Proposal for Development and Support Statement of Work

a. The parties to this Statement of Work (SOW) agree that this Statement of Work is entered into pursuant to the Consultancy Services Agreement between Infomedia Ltd and Zediant Technologies Private Ltd on [1st May 2019 (**Contractor Agreement**)].
b. This Statement of Work, together with the Consultancy Agreement, forms a single agreement between the parties.
c. Capitalised terms used in this Statement of Work but not otherwise defined have the meaning given to them in the Consultancy

1. **DETAILS**

| | |
|---|---|
| **Effective Date** | 1st May 2019 |
| **Main business contacts** | **Infomedia** – Andrew Selim aselim@infomedia.com.au<br><br>**Zediant** - Sayani Chatterjee sayani@zediant.com |
| **Invoice Recipient** | Andrew Selim aselim@infomedia.com.au with a copy to accounts-syd@infomedia.com.au |
| **Minimum Term** | 24 months from the effective date with two further renewal periods of 12 Months each at Infomedia's discretion. |

2. **DESCRIPTION OF THE CONSULTANCY SERVICES**

### Part 1: Development activities of products to Infomedia

Zediant will provide full time or part time resources located in Kolkata West Bengal India as per the 'Resource Planning Sheet' agreed to by Infomedia and Zediant.

The team shall work under the direction of a nominated Infomedia representative and be allocated tasks on a daily, weekly basis or monthly basis by an Infomedia Product and/or Project Manager.

Infomedia may require this team to work on changes, enhancements, operations or support as required.

This SOW will govern the initial manpower requirements as outlined above including any future hires and/or amendments to the SOW Staff. Changes to the composition of the SOW Staff group are not required to be evidenced by a revised and signed SOW document. Emails or other written notifications between the parties will suffice to amend the SOW Staff group. Zediant will maintain a spread sheet that contains all the names, positions, start dates, compensation packages ("Resource Planning Sheet") for all the Zediant employees that are part of the SOW Staff group. The Resource Planning Sheet will be the basis for Zediant's monthly billing.

The compensation packages that all SOW Staff receive are transparently shared with Infomedia through the Resource Planning Sheet. Any changes to the SOW Staff's salary and benefits package must be discussed and agreed with Infomedia in line with Infomedia's annual salary review cycle. Monthly fees will be re-computed based on the new package and amended in the SOW Cost Sheet. Zediant will work together with Infomedia on periodical performance evaluations based on Infomedia's performance review processes.

SOW staff must be employed with a minimum 60 day notice period on resignation. Zediant will inform Client if a SOW Staff member has tendered his or her resignation after which Infomedia can decide whether or not to instruct Zediant to start the search for a replacement.

## 3. OFFICE AND IT RESOURCES

Zediant will at its cost provide all services to support these resources including:

a. Suitable and secure office space at its office in Kolkata, West Bengal
b. All IT hardware and software required to perform the services and IT support for this equipment.
c. VPN connectivity to Infomedia and internet connectivity (if required)
d. 24 hour backup power for facilities
e. Space to display Infomedia branded posters such as Infomedia Core Values in the area occupied by the SOW staff group.

## 4. STAFFING

Zediant will provide adequate coverage for resources who are not available during the service hours for any reason by way of an agreed 'Thin Roster' on local public holidays, annual leave or sick leave to ensure Zediant complies with its SLA and project delivery obligations.

The resources will be available during the following service hours;

1. Support Resources: 12pm to 9pm AEST Monday to Friday
2. Other Resources: 12pm to 9pm AEST Monday to Friday

Unless otherwise required to meet the SLA.

Zediant will schedule their work hours in agreement with Infomedia to provide adequate coverage during these hours. Infomedia reserves the right to modify these working hours in future to cover support hours in other regions.

## 5. OTHER ZEDIANT RESPONSIBILITIES

Zediant is responsible for the following at no additional cost to Infomedia:

a. Recruitment – for any additional posts required, expansion of the team, backfill should there be attrition.
b. Finance – for concerns with regard to employee salary, cash advances, bonuses/ incentives, invoicing, etc.
c. Technology – for additional hardware or software needs, system issues/ concerns.
d. Human Resources – for action of performance management (whether it is performance based or behavior), career advancements, employee relations, etc.
e. Daily Attendance Tracking
f. Behavioral Coaching – if needed, and when the employees violate any provisions in Zediant's or Infomedia's Code of Conduct
g. Office Administration - security and maintenance of office premises.
h. Security and Privacy Compliance – daily

Zediant is responsible for staff recruitment and the administration of candidate endorsements to Infomedia together with the proper processing of successful candidates. For the sake of clarity, Infomedia has the right of final selection of SOW Staff and approval of salary package. Notwithstanding the Client's right of final selection, Zediant will be the employer of any successful candidate.

## 6. SCOPE OF WORK TO BE UNDERTAKEN

The scope of services provided by the resources shall include but not be limited to:

a. Support on boarding, including data set-up and system configuration of new clients or user base of the application.
b. Support for user queries on functions / use, passing through non relevant support matters to relevant departments
c. Support and resolution of incidents, requests and problems relating to the applications and technology stack including corrective maintenance. This will cover all incident levels excluding any issue that are diagnosed as being a client issue that requires the client to make changes to their environments/systems
d. Post Incident Reviews (PIRs) for severity 1 incidents and implement identified actions from the review.
e. Support and resolve data related issues arising for the user base of the application
f. Undertake corrective maintenance actions including modifications to fix application problems caused by design, logic, coding, development, 3rd party updates and/or infrastructure errors.
g. Corrective Maintenance will be triggered by an explicit incident, request or problem report, and involves errors that must be investigated immediately. All project phases and activities required to build, test and deploy all Steady-State Corrective Maintenance changes as necessary to fix the application problems.
h. Steady-State Corrective Maintenance consists of the action(s) taken to restore a failed system to operational status. This usually involves replacing or repairing the software component that is responsible for the failure in the system. Corrective maintenance is performed at unpredictable intervals. The objective of corrective maintenance is to restore the system to satisfactory operation within the shortest possible time.
i. Corrective maintenance is also undertaken to ensure continuing operations for software version/platform/infrastructure changes, when the impacted business application/system would otherwise not work as a direct result of that version/platform/infrastructure change.
j. Project management shall be required for Steady-State Corrective Maintenance efforts to ensure software developers and other technical staff follows project plans established in each Work Request.
k. Management, html design, development, testing and release management for enhancements and bug fixes.
l. Communication with customers throughout the issue resolution process.
m. Team management and leadership
n. Training, skills transfer and handover to the Infomedia team

## 7. DURATION OF SERVICE TO BE DELIVERED

a. This Statement of Work will commence on the Effective Date for the Minimum Term stated in the Details above .
b. Infomedia may terminate the Statement of Work or individual resources within the Statement of Work at any time for convenience by giving at least 60 days written notice.
c. Infomedia may terminate the use of an individual resource with immediate effect in cases of gross negligence, fraud, or other events or circumstances in which continued SOW Staff employment is considered by Infomedia management to not be in the best interest of Infomedia

## 8. DELIVERABLES

a. Staff - Provide skilled analysis and technical staff who have access to the physical equipment and software tools necessary to perform the activities in scope for this Statement of Work.
b. Support - Ensure staff are suitably trained, supported and managed to deliver the required outcomes and service levels
c. Adherence - Ensure the continued presence and availability of sufficient numbers of skilled analysis and technical staff such that activities in scope for this Statement of Work are carried out are carried out in the manner and according to the timings/service levels

d. Productivity - ensure analysis and technical staff are executing their tasks and producing deliverables at the required rate (to be governed by the various agreed execution strategies/plans)
e. Compliance - Ensure staff are following documented processes and updating the relevant systems accordingly
f. Quality - Ensure analysis and technical staff are exceeding quality requirements in line with QA monitoring processes
g. Performance - achieve the SLA defined below and KPIs to be agreed with Zediant at the first monthly review meeting

## 9. STAFF PROFILE AND FLEXIBILITY

a. Analysis and technical staff must have a background of succeeding within the key technical skills required
b. Analysis and technical staff must be capable of carrying out a wide range of development related tasks and use a wide range of methods and tools; they must be willing and able to rapidly adjust their methods of working in light of measured results and client requests, whilst maintaining high levels of performance and output
c. Staff must be available and contactable and have access to the required tools outside of business hours on an ad-hoc basis in the event of any issues discovered with on-going systems and developments.

## 10. SERVICE LEVELS (SLA)

### a. Incident Management SLA

The incident response times as set out in the table below are calculated from the time when Zediant is notified of an incident by either email, voice call or via JIRA.

This SLA applies only to direct areas of Zediant control and not in areas that are the responsibility of any third party (software or platform provider for example). Infomedia will confirm any SLA's with third parties directly.

a. Zediant will advise Infomedia of the status and progress towards resolution through regular updates in Jira or Zendesk (Jira updates flow through to Zendesk).

All incidents must be logged in Zendesk to ensure that all stakeholders are constantly updated when incidents occur. Incidents shall be classified as per the tables below:

| Severity Level | Determination Criteria |
|---|---|
| **Severity Level 1** | **Fatal**: Errors that meet the following criteria:<br>• No access to the Application; or<br>• Access to the Application but an error condition prevents any useful work from being done; or<br>• Access to the Application but with a material error in essential functions for which no work around exists; or<br>• Access to the Application but error condition exists causing data loss |
| **Severity Level 2** | **Severe Impact**: Errors that meet the following criteria:<br>• Access to the Application but an error condition exists that disables essential functions but a 'work around' exists; or<br>• Access to the Application but an error or condition exists which materially impacts the use or functionality of the Application |

| | |
|---|---|
| **Severity Level 3** | **Minor Impact:** Errors that meet the following criteria:<br>• Access to the Application but an error condition exists which is non-critical or disables nonessential functions; or.<br>• Application is showing occasional performance degradation or constraints on accessing some functions.<br>This is the default Severity Level for reported errors that do not meet the criteria for Severity Level 1 or Severity Level 2. |
| **Severity Level 4** | **Minimal Impact:** Non-critical problems generally categorized as an enhancement for potential inclusion in a future version of the Application. |

Zediant shall respond to incidents in accordance with the following response schedule. Note that this response schedule is subject to change and there may be a different response level for specific Infomedia customers:

| Error Classification | 1st Level Response | 2nd Level Response | 3rd Level Response |
|---|---|---|---|
| **Severity Level 1** | Fifteen (15) minutes | One (1) day after acknowledged receipt of error report | Next minor release |
| **Severity Level 2** | One (1) hour | Three (3) Business Days | To be scheduled |
| **Severity Level 3** | Two (2) days | To be scheduled | To be scheduled |
| **Severity Level 4** | Seven (7) days | To be scheduled | To be scheduled |

**Response Levels:**

| | Actions |
|---|---|
| **1st Level Response** | Acknowledge receipt of error report. |
| **2nd Level Response** | Implementation of work around, temporary fix, or other temporary resolution of the error and documentation of corrections. |
| **3rd Level Response** | Upon review and approval, official object code fix incorporated in an upgrade or a code based work around (supported by maintenance and support obligations described herein) and reflected in the updated documentation. |

b. **Service Process**

Customers will log service calls as per current process (emailed through application). These may be logged through the Infomedia Customer Service Team in future.

Service tickets and issues will be managed through the use of Infomedia's instances of Zendesk. Zediant will be granted access to this.

Incidents that require development will be transferred to Infomedia's JIRA environment.

Existing open incidents will need to be brought into Infomedia's environment within 4 weeks of SOW commencement.

A knowledge base within Infomedia's environment (e.g Infomedia's Confluence) will be defined and the process of maintaining and auditing this will be put in place. The review of this will take place at the first monthly operational review session and presented for sign off to Infomedia.

The tracking of tasks and time will be tracked through JIRA, and weekly and monthly reporting will be provided by Zediant.

The team will be managed by and supervised by the Zediant Operations Manager in India.

The onboarding of new customers will be managed by Infomedia Frontline Sales and the Project Manager initially. The configuration work will be done by the Zediant team in conjunction with the Infomedia sales teams who establish the configuration specification. This can be varied as required post transition.

One resource will be required to be on-call at all times (24/7) to respond to Severity 1 incidents. The contact details for the on-call resource will need to be documented in Infomedia's Confluence On-Call roster.

**b. Reporting Requirements**

Operations Daily and Weekly operations/issue management report

Record of monthly hours used via timesheets logged in JIRA.

**c.SOW Review Meeting Frequency**

Monthly

**11. CHARGES**

**Engagement 1: Dedicated FTE's based in India**
Zediant agrees to offer dedicated resources as per the agreed 'Resource Planning Sheet' under a transparent pricing model of 35% gross margin on raw employment costs, and specified office costs. Infomedia observes the rights of each employee to standard leave, public holiday and sick day entitlements as outlined in 'Leave Entitlements' below.

**Engagement 2: Ad Hoc Project Services**
Zediant agrees to offer additional resources on an ad-hoc basis outside the agreed 'Resource Planning Sheet' (if required) at a maximum of 50% gross margin on direct employment costs and office costs.

**Miscellaneous Charges**
Zediant may from time to time incur miscellaneous charges related to travel, 3rd party software, cultural bonuses and other costs. Zediant will first seek approval from Infomedia for any miscellaneous costs and apply no more than 5% gross margin unless otherwise agreed between the parties.

**Specified Office Costs**

The Specified Office Costs are limited to the following:

a. Office Rent
b. Office Maintenance
c. Electricity
d. Internet Connection
e. Municipality Tax
f. Software
g. Server/Security
h. Computers
i. Insurance
j. Miscellaneous Office Costs

The proportion of Specified Office Costs chargeable to Infomedia will be agreed between the parties and documented in the Resource Planning Sheet with an estimate of the costs. The agreed proportion will be based on the percentage of office space used by the Infomedia SOW staff. The charges to Infomedia will be based on the actual Specified Office Costs and shall not be more than the estimated costs unless otherwise agreed to by Infomedia. Zediant will supply Infomedia with supporting documentation for the actual costs.

**Leave Entitlements**

The standard leave policy followed at Zediant is:

Normal:
- Casual Leave (CL) – 4 days per year

- Sick Leave (SL) – 4 days per year

- Earned Leave (EL) – 1 day for every 20 working days (Max 12 days per year)

- Public Holidays (PH) – 12 days per year (includes 4 days of Durga Puja Festival)

Total: Max 32 days including all Public Holidays. Zediant will provide the list of Public holidays along with the dates at the beginning of the year.

Ad-hoc:
- Maternity Leave (ML) – Female: 90 days

- Paternity Leave (PAL) – Male: 10 days

- Leave Without Pay (LWP) – Based on discretion

**12. INVOICE SCHEDULE**

Invoices to be issued on a monthly basis in advance of services rendered, together with approved time sheets for all SOW Staff from the prior month.

Where there is an unforeseen change in SOW staff during a month (eg resignations, departures etc) , an adjustment will be made to the invoice in the following month for this increase (if approved by Infomedia) or decrease in cost.

No expenses will be reimbursed except with prior written approval.

## 13. ACCEPTANCE

Signed for and on behalf of
Infomedia Ltd

Signed .....

Name MARK GRODZICKY

Title COMPANY SECRETARY

Dated 15/5/2019

Signed for and on behalf of
Zediant Technologies Private Ltd

Signed Sayani Chatterjee

Name Sayani Chatterjee

Title Director

Dated 13.05.2019

ZEDIANT TECHNOLOGIES PVT. LTD. KOLKATA